

**FORM F26
(RULE 9-7 (9))**

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

INSTRUCTIONS TO EXAMINER

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

To:

[name and address]

You have been appointed Examiner to take the evidence of _____. A copy of the order appointing you is attached. The law of British Columbia will apply to the taking of this evidence.

The party wishing to examine _____ before you is required to serve
[name of person to be examined]

that person with a subpoena and tender the proper fees not fewer than _____ days before the date you fix for the examination.

The witness and any interpreter will be sworn or affirmed in accordance with the form set out below.

After the examination has been held and the evidence transcribed and the transcript certified by you as correct, you are to send the deposition and other documents by registered mail to the registrar, courthouse

[address]

OATH (OR AFFIRMATION) OF WITNESS

Do you swear that the evidence that you will give in these proceedings will be the truth, the whole truth, and nothing but the truth, so help you God?

OR

Do you affirm that the evidence that you will give in these proceedings will be the truth, the whole truth, and nothing but the truth?

INTERPRETER'S OATH

Will you truly, faithfully and without partiality to any party in this proceeding, and to the best of your ability, interpret and translate any oath or affirmation that will be administered and all questions that may be asked of any witness and the witness's answers, so help you God?

Date: _____

Signature of ☐ party ☐ lawyer for party(ies)

[type or print name]